



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 3330 (EXTENSION)
THIRD REVISION October 14, 1996

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 3330 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to April 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

MAY 27 1994

MAY 27 1994

(DATE)

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Babcock and Wilcox Company
Lynchburg, VA

December 6, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 3330
(THIRD REVISION) OCT 1 1986

1. Babcock and Wilcox Company, Lynchburg, Virginia, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of packagings not presently authorized by the Department's Hazardous Materials Regulations, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Teledyne Wah Chang Albany Corporation, Albany, Oregon - PTE-1.
General Electric, Schenectady, N.Y. - PTE-2.
Western Zirconium, Inc., Ogden, Ut. - PTE-3.

2. BASIS. This exemption is based on Babcock and Wilcox Company's application dated August 29, 1986, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Teledyne Wah Chang Albany Corporation's application dated April 16, 1986, and supplemental letter of June 10, 1986.
General Electric's application dated June 30, 1986.
Western Zirconium, Inc.'s application dated August 1, 1986.

3. HAZARDOUS MATERIALS (Descriptor and class). Zirconium alloy metal powder or Hafnium alloy metal powder, in an atmosphere of inert gas, classed as a flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Zirconium metal, dry, or Hafnium metal, dry, as appropriate.

5. REGULATIONS AFFECTED. 49 CFR 173.214(b), and (d).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packagings prescribed for Zirconium powder and Hafnium powder are as follows:

- i. Packed in either a 32-ounce or 16-ounce container with screw cap, self-locking closure. The 32-ounce container holds a maximum of seven and one-half pounds of zirconium powder, or thirteen pounds of hafnium powder.
- ii. These containers are overpacked in a gas tight can within a double wall insulated, water tight container having all welded seams and a gasketed closure.

- iii. The insulated container is further overpacked in a DOT Specification 17C or 17H, metal drum, of either 23-gallon 30-gallon, or 55-gallon capacity, or DOT Specification 37A metal drum of either 5-gallon, 23-gallon, 30-gallon or 55-gallon capacity.
 - iv. The gross weight of the 5-gallon drum must not exceed 30 pounds. The gross weight of the 23 and 30 gallon drums must not exceed 150 pounds for Zirconium or 200 pounds for Hafnium. The gross weight of the 55 gallon drum must not exceed 300 pounds for Zirconium or 370 pounds for Hafnium.
 - v. Reuse of the single trip DOT Specification packaging is authorized provided it is in good condition and as efficient for this purpose as a new drum.
8. SPECIAL PROVISIONS. None applicable.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.
10. EXPIRATION DATE. June 30, 1988.

Issued at Washington, D.C.:

501 *Suzanne Hedgepeth*
Alan I. Roberts
Director
Office of Hazardous Materials Transportation

OCT 14 1986

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.